

PCU318741 Pimentel, Juliana et al vs. FCA US LLC, a Delaware Limited Liability Company et al

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-07-28

Motion: Plaintiff's (1) Motion to Enforce Settlement; (2) Motion for Sanctions under Code of Civil Procedure section 128.5

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Re: Pimentel, Juliana et al vs. FCA US LLC, a Delaware Limited Liability Company et al

Case No.: PCU318741

Date: July 28, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Plaintiff's (1) Motion to Enforce Settlement; (2) Motion for Sanctions under Code of Civil Procedure section 128.5

Tentative Ruling: (1) To grant the motion and enter judgment in the amount of 35,350; (2) To deny the motion.

(1) Plaintiff's Motion to Enforce Settlement

In this matter, the parties resolved the underlying Song Beverly action on or about February 19, 2026 when the executed Settlement Agreement was served on Defendant's counsel. In pertinent part, the Settlement Agreement states:

"In sole consideration of the tender of good and negotiable funds in the amount of \$35,000, made by FCA US LLC, we, Juliana Pimentel and Julio Pimentel Cazares, release and discharge FCA US LLC, their representatives, employees, agents, directors, members, shareholders, stakeholders, attorneys, assigns, assignees, acquiring entities, predecessors, successors, direct and indirect parent entities and subsidiaries, affiliated entities, Porterville Chrysler Jeep Dodge Ram, and any other authorized FCA US LLC dealership from all known and unknown claims, damages, costs, attorneys' fees, expenses and loss of services related to my 2023 Jeep Cherokee Overland, VIN: 1C4RJJDG2P8734037 ("Subject Vehicle") through and including the execution date of this release. This Release shall not limit or modify the terms of any warranty or service contract applicable to the Subject Vehicle. The transaction will be completed within 60 days from receipt of this executed settlement agreement and release."

The Settlement Agreement further states:

"We agree to indemnify and hold the above parties harmless from all further claims, costs or expenses relating to this claim. We expressly agree that the only consideration we will receive is that listed above and that FCA US LLC has made no other promises to us. We accept the consideration listed above as full satisfaction of any and all claims as set forth herein.

...

This Agreement will remain within the jurisdiction of the Court for purposes of enforcing the obligations of the Parties, pursuant to Cal. Code of Civ. Proc. Section 664.6 and any corresponding Federal Rules of Civil Procedure. If either party files a motion or other legal proceeding to enforce or interpret this Agreement or any of its provisions, the prevailing party in such proceeding shall be entitled to recover all litigation expenses and reasonable attorney's fees based on actual time expended in pursuing such motion or proceeding.

This release reflects the final agreement between the parties and is intended to replace any prior release or agreement relating to claims described herein. Any prior agreement and/or release relating to the claims described herein is/are void and unenforceable."

Plaintiff, however, notes that FCA has not paid the \$35,000 due under the agreement, which was due approximately April 20, 2026. Plaintiff, therefore, filed this motion to enforce the settlement on May 12, 2026.

Plaintiff seeks entry of judgment as follows:

a) Payment by Defendant FCA US LLC, in the amount of \$35,000 in a check or checks payable to The Lemon Pros, LLP client trust account for JULIANA PIMENTEL and JULIO PIMENTEL CAZARES, within 30 days of the Court's Order.

b) Payment by Defendant FCA US LLC to Plaintiffs of prejudgment interest at a 10% annual rate on the unpaid amount of \$35,000 from the date of the beginning of this legal action, March 4, 2025, to the date of this motion pursuant to Cal. Civ. Code § 3287, May 12, 2026, in the amount of \$3,915.00, or 435 days at a daily rate of \$9.00 ($\$35,000.00 \times 0.10 / 365$), and further interest incurred through the date of the Court's judgment, to be paid within 30 days of the Court's Order; and

c) Payment by Defendant FCA US LLC to Plaintiffs' counsel in the amount of \$4,567.50 for 8.7 hours for the legal work related to this present motion within 30 days of the Court's Order.

No opposition appears to have been filed.

Authority and Analysis

Section 664.6 (a) states:

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

"The court's retention of jurisdiction under section 664.6 includes jurisdiction over both the parties and the case itself, that is, both personal and subject matter jurisdiction." (Lofton v. Wells Fargo Home Mortgage (2014) 230 Cal.App.4th 1050, 1061.) "Section 664.6 permits the trial court judge to enter judgment on a settlement agreement without the need for a new lawsuit." (Osuni v. Sutton (2007) 151 Cal.App.4th 1355, 1360)

Here, this matter has not been dismissed and the Court has jurisdiction to enter judgment pursuant to the terms of the Settlement Agreement.

Section 664.6 permits the Court to enter a judgment in strict conformance with the terms of a settlement agreement. (Code Civ. Proc. § 664.6(a) [“the court, upon motion, may enter judgment pursuant to the terms of the settlement.”] Further, “if the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement.” (Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1182.)

The court in *Hernandez v. Board of Education* (2004) 126 Cal.App.4th 1161, 1176 noted that “[t]he power of the trial court under Code of Civil Procedure section 664.6, however, is extremely limited. Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.” When ruling on a section 664.6 motion, the trial court acts as a trier of fact to determine whether a settlement has occurred, which is also an implicit authorization for the trial court to interpret the terms and conditions to settlement. (*Weddington Prods., Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809.)

The Court may not “create the material terms of a settlement,” and must instead decide on what terms the parties agreed upon. (Id.) “In acting upon a section 664.6 motion, the trial court must determine whether the parties entered into a valid and binding settlement of all or part of the case. In making this determination, trial judges, in the sound exercise of their discretion, may receive oral testimony or may determine the motion upon declarations alone.” (*Corkland v. Boscoe* (1984) 156 Cal.App.3d 989, 994.) “[T]he trial court is under a duty to render a judgment that is in exact conformity with an agreement or stipulation of the parties. ‘If interpretation of a stipulation is in order the rules applied are those applied to the interpretation of contracts. [Citations.] It is not the province of the court to add to the provisions thereof [citations]; to insert a term not found therein [citations]; or to make a new stipulation for the parties.’” (*Jones v. World Life Research Inst.* (1976) 60 Cal.App.3d 836, 840.)

Therefore, the Court will enter judgment in the amount of \$35,000.

Prejudgment Interest

The Court notes prejudgment interest is an element of damages, and as such, a settlement agreement is presumed to contain the parties' mutual agreement of the amount that the adequately compensate a plaintiff in exchange for a release of claims. (*BTHHM Berkeley, LLC v. Johnston* (2024) 100 Cal.App.5th 1220, 1225-26 [“We disagree that Civil Code section 3287 authorizes an award of prejudgment interest on a judgment entered pursuant to Code of Civil Procedure section 664.6 where, as here, the parties have reached their own agreement about what compensation is owed for damages that would otherwise be addressed by an award of prejudgment interest.”].)

Therefore, the Court will not award prejudgment interest.

Further Interest

Although further interest from the date of this motion through the Court's order on entry of judgment is requested, Plaintiff's motion lacks argument and authority in support of this contention. As the Settlement Agreement is likewise silent on such further interest, the Court will decline to award such here.

Attorneys' Fees

Here, the Settlement Agreement expressly provides for attorneys' fees, stating "If either party files a motion or other legal proceeding to enforce or interpret this Agreement or any of its provisions, the prevailing party in such proceeding shall be entitled to recover all litigation expenses and reasonable attorney's fees based on actual time expended in pursuing such motion or proceeding."

Here, Plaintiff's counsel states "Plaintiffs' Motion to Enforce Settlement, Motion for Sanctions and respective declarations took me 3.7 hours to draft and finalize." (Declaration of Urner ¶7)

Here, the Court does not consider time spent regarding the motion for sanctions and declaration in support thereof to be within the scope of the Settlement Agreement to enforce the Settlement Agreement.

The Court notes a rate of \$525 in the declaration accompanying the motion for sanctions.

"The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in his court." (Id.)

As such, the Court sets the hourly rate at \$350 per hour.

The Court will award 1 hour on this motion.

Therefore, the Court will include \$350 in attorneys' fees.

(2) Plaintiff's Motion for Sanctions under Code of Civil Procedure section 128.5

Facts

In this matter, Plaintiff notes this matter was settled at mediation in October 2025 and that a formal settlement agreement was accepted by Plaintiffs on January 30, 2026, and served on Defendant's counsel on February 19, 2026. The Settlement Agreement provided that "The transaction will be completed within 60 days from receipt of this executed settlement agreement and release."

As such, the funders were due April 20, 2026.

As of the filing of this motion, the funds have not been paid.

Counsel for Plaintiff states "...82 days have passed since service of the Release Agreement despite Plaintiffs' approximately 6 attempts at contacting Defendant on the status of remittance." (Declaration of Urner ¶4.) Further that:

"...These 82 days follows a prior three (3) month delay after the case was settled at mediation to provide Release in dispute here. Plaintiffs' numerous requests for updates on the settlement checks are not unique to this issue alone. Defendant's pattern of avoidance dates back to November 2025 following the Parties' settlement of the case in mediation on or around October 29, 2025. Defendant FCA US LLC did not issue the Release Agreement until late January 2026, despite Plaintiffs repeated follow up attempts. To this day, FCA's delays have forced Plaintiffs to continue making payments on their defective vehicle and prevent them from purchasing a new replacement vehicle. As of May 11, 2026, Plaintiffs' last attempt to contact Defense, Plaintiffs have yet to receive a response regarding the status of the check. Plaintiffs' counsel exhausted its effort in

obtaining a meaningful update from Defendant's counsel regarding an update on remittance."

Plaintiff moves for sanctions pursuant to Code of Civil Procedure sections 128 and 128.5, seeking \$4,567.50.

No opposition appears to have been filed.

Authority and Analysis

California Code of Civil Procedure section 128.5(a) authorizes the Court to "order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc. § 128.5(a).)

"Actions or tactics" are defined under section 128.5(a) and "include, but are not limited to, the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading." (Code Civ. Proc. § 128.5(b)(1).) Further, the term "frivolous" is defined as "totally and completely without merit or for the sole purpose of harassing an opposing party." (Code Civ. Proc. § 128.5(b)(2).)

"Whether an action is frivolous is governed by an objective standard: any reasonable attorney would agree it is totally and completely without merit. [Citations.] There must also be a showing of an improper purpose, i.e., subjective bad faith on the part of the attorney or party to be sanctioned." (In re Marriage of Sahafzadeh-Taeb & Taeb (2019) 39 Cal. App. 5th 124, 135 (quoting Levy v. Blum (2001) 92 Cal. App. 4th 625, 635); see also Campbell v. Cal-Gard Surety Services, Inc. (1998) 62 Cal.App.4th 563, 573–574 [party seeking § 128.5 sanctions must show action was "meritless or frivolous, and that it was pursued in bad faith"].)

Procedural Requirements

Notice of a motion for sanctions pursuant to Code of Civil Procedure section 128.5 "...shall be served as provided in Section 1010, but shall not be filed with or presented to the court, unless 21 days after service of the motion or any other period as the court may prescribe, the challenged action or tactic is not withdrawn or appropriately corrected." (Code Civ. Proc., § 128.5, subd. (f)(1)(B).)

Here, the declaration and attached exhibits fail to demonstrate service of the notice of motion, memorandum, declaration and exhibits at least 21 days prior to the filing of this motion on May 12, 2026.

Under these provisions, service of the motion initiates a 21-day "safe harbor" period. (Banks v. Hathaway, Perett, Webster, Powers & Chrisman (2002) 97 Cal.App.4th 949, 953.) During this time, the issue may be corrected without penalty and if so corrected, the motion for sanctions shall not be filed. (Li v. Maestic Industry Hills LLC (2009) 177 Cal.App.4th 585, 591.)

Further, at the time of such initial service, the motion served must set forth the hearing date. (Galleria Plus, Inc. v. Hanmi Bank (2009) 179 Cal.App.4th 535, 538.)

Strict compliance, not substantial compliance, with the safe harbor notice provisions is required. (CPF Vaseo Associates, LLC v. Gray (2018) 29 Cal.App.5th 997, 1007.)

Here, the Court denies this motion based on the lack of evidence before this Court as to strict compliance with the safe harbor notice provisions.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.